

ASCII MASTER FLOW – PANEL 1/12: Part XXI scope and asymmetry architecture

PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS

ONE UNION -> ordinary State framework + purpose-specific constitutional difference.

THIS TOPIC OWNS

Articles 371-371J; minimum Article 370/35A status needed for legal distinction.

CROSS-OWNED

Fifth/Sixth Schedules -> Polity 26 | J&K/Ladakh UT machinery -> Polity 25.

ANSWER LINE

Equality permits calibrated difference; special treatment remains inside one Constitution.

MUST REMEMBER: Own Articles 371-371J and only the minimum Article 370/35A status needed to explain present asymmetric federalism. State, Article, amendment, protected interest and constitutionally responsible actor must match exactly.

ASCII MASTER FLOW – PANEL 2/12: Article 370 and Article 35A legal timeline

1947 accession -> Article 370 temporary application mechanism -> 1954 Order inserts Article 35A
-> J&K Constituent Assembly dissolves in 1957.

Sampat Prakash (1968) confirms continued Presidential-Order practice.

5 AUGUST 2019: C.O. 272 applies Constitution comprehensively.

6 AUGUST 2019: C.O. 273 renders former Article 370 provisions inoperative.

31 OCTOBER 2019: Reorganisation creates J&K UT with legislature + Ladakh UT without.

TRAP: printed in text does not mean operative; Article 35A is not a current guarantee.

ASCII MASTER FLOW – PANEL 3/12: In re Article 370 and current federal status

IN RE: ARTICLE 370 OF THE CONSTITUTION (2023)

Temporary provision | no separate internal sovereignty | Article 370(3) power survived 1957
| constitutional result upheld | Article 367 route unnecessary/invalid to the stated extent.

NOT FINALLY DECIDED

Permanent validity of converting J&K State into Union Territories.

CURRENT 28 AUGUST 2026

J&K: UT with elected legislature; Statehood pending, no judicial deadline.

Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

ASCII MASTER FLOW – PANEL 4/12: Article 371 amendment and actor ladder

371: Maharashtra/Gujarat -> President may assign Governor regional-development responsibility.

371A 13th (1962) | 371B 22nd (1969) | 371C 27th (1971).

371D/E 32nd (1973), 371D adapted to Telangana by 2014 reorganisation law.

371F 36th (1975) | 371G 53rd (1986) | 371H 55th (1986).

371I 56th (1987) | 371J 98th (2012; effective 2013).

MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.

ASCII MASTER FLOW – PANEL 5/12: Development models: Articles 371 and 371J

ARTICLE 371 – MAHARASHTRA/GUJARAT

President order -> Governor special responsibility -> separate boards + annual Assembly reports
-> equitable development funds + technical/vocational and State-service opportunity.

ARTICLE 371J – KARNATAKA

Constitution says Hyderabad-Karnataka; current official name: Kalyana Karnataka.
President order may provide board, equitable funds/opportunity and proportionate local seats/posts for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.

ASCII MASTER FLOW – PANEL 6/12: Consent shields: Nagaland and Mizoram

ARTICLE 371A – NAGALAND

Assembly resolution required for Parliamentary law on Naga religious/social practices, customary law/procedure, customary civil-criminal justice, and land/resources.

Also contains Tuensang and bounded transitional Governor law-order arrangements.

ARTICLE 371G – MIZORAM

Parallel shield for Mizo practices, customary law/procedure, customary justice and land; Assembly minimum 40.

TRAP: subject-specific consent is not a general parliamentary veto.

CLOSE DISTINCTION: Do not merge Part XXI State-specific clauses with Article 244 and the Fifth/Sixth Schedules, PESA, Union-Territory administration, or special provisions for certain classes. Those are Topics 26, 23, 25 and 53.

ASCII MASTER FLOW – PANEL 7/12: Committee models: Assam and Manipur

ARTICLE 371B – ASSAM

President may constitute an Assembly committee of members from specified tribal areas plus such other Assembly members as the order provides.

ARTICLE 371C – MANIPUR

President structures Hill Areas Committee and State-business rules.

Governor has special responsibility, reports annually to President; Union may direct State.

TRAP: neither committee is itself a Sixth Schedule autonomous district council.

ASCII MASTER FLOW – PANEL 8/12: Local opportunity: Articles 371D and 371E

ARTICLE 371D – ANDHRA PRADESH AND TELANGANA

President may order equitable public-employment and educational opportunity, local areas/cadres, and related allocation rules. Section 97 of the 2014 Reorganisation Act adapted the text. Former Andhra Pradesh Administrative Tribunal abolished by G.S.R. 30(E), 14 January 2020.

ARTICLE 371E – ANDHRA PRADESH ONLY

Parliament may establish a Central University. It is not a reservation clause.

ASCII MASTER FLOW – PANEL 9/12: Integration and law-order models: 371F, 371H, 371I

ARTICLE 371F – SIKKIM

36th Amendment integration settlement: representation, law/court continuity, one Lok Sabha seat, Assembly at least 30; Governor discretion for peace/equitable advancement subject to President.

ARTICLE 371H – ARUNACHAL PRADESH

Governor consults ministers but uses individual judgment in bounded law-order responsibility; President may terminate it. Assembly at least 30.

ARTICLE 371I – GOA: Assembly at least 30; no customary-law shield.

ASCII MASTER FLOW – PANEL 10/12: Article 371 versus Fifth and Sixth Schedules

ARTICLE 371 FAMILY – Part XXI, State-specific constitutional clauses.

FIFTH SCHEDULE – Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC.

SIXTH SCHEDULE – Article 244(2): autonomous district/regional councils in Assam, Meghalaya, Tripura and Mizoram with specified legislative, judicial and fiscal powers.

DO NOT MERGE

371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

ASCII MASTER FLOW – PANEL 11/12: PYQ and current-institution traps

NORTH EASTERN COUNCIL

Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees.

Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework.

Not an Article 371 body and not a Sixth Schedule council.

CURRENT TRAPS

J&K Statehood pending | Ladakh demands unenacted | AP tribunal abolished

| Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

ASCII MASTER FLOW – PANEL 12/12: Mains synthesis and qualified conclusion

MAINS SPINE

Define asymmetry -> classify development/consent/committee/integration models

-> name State, Article, amendment and actor -> show protective benefit

-> test equality, local minorities, accountability and implementation

-> compare Fifth/Sixth Schedules only where relevant -> qualified verdict.

REFORM

Annual reports + outcome data + transparent reservation rules + local participation + review.

CONCLUSION

Indian unity is strengthened by bounded, reviewable difference—not mechanical uniformity.

LEGAL/SOURCE LIMIT: Article 370 remains printed but inoperative. In re Article 370 upheld the 2019 constitutional result, did not finally adjudicate J&K's conversion to a Union Territory after the Union assurance, and left Ladakh's UT formation undisturbed. J&K statehood remains unrestored.